

CASE NUMBER: 26PB-0033361

This matter is on calendar for hearing on a Petition to Compel Accounting, Dispute Care Determination, and Right to Stay. The Petition has not been signed or verified, as required by Probate Code Section 1021 and CRC 7.103. There is no proof of service for David Guadagni. The proof of service filed for Attorney Arel is incomplete as to item 4(b), place of mailing. Additionally, a copy of the Trust has not been provided so the Court is unable to determine whether proper notice has been provided to all beneficiaries. The matter is continued to **Monday, July 6, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Petition to Compel Accounting, Dispute Care Determination, and Right to Stay. An amended Petition is required to be filed to address the issues raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

IN RE: MAZZINI FAMILY TRUST, DATED FEBRUARY 27, 2003

CASE NUMBER: 24PB-0032717

This matter is on calendar for further proceedings on a Petition to Recover Trust Property. The Court previously continued this matter to allow the parties time to conduct discovery and obtain appraisals to facilitate settlement discussions. A Status Report has not been filed. **An appearance is necessary on today's calendar for status of discovery and possible setting of a contested hearing.**

IN RE: MILENEWICZ-PENTA LIVING TRUST

CASE NUMBER: 26PB-0033358

This matter is on calendar for hearing on a Petition to Appoint Successor Trustee. The matter has been properly noticed with proof of service on file. No objections have been raised. The verification on page 4 of the Petition is unsigned. Probate Code Section 15660.5 states that the Public Administrator may be appointed as trustee if, among other things, "after reasonable inquiry, no other qualified person is willing to act as trustee." The Petition fails to address whether an inquiry has been made and whether the Trustor's siblings are qualified to act as trustee. Additionally, Probate Code Section 15660.5 requires that "at the time of appointment and pursuant to the terms of the trust, the entire trust is then to be distributed outright." Section 9 of the Trust provides that distribution to a minor beneficiary shall either be (1) held in trust for that minor beneficiary, or (2) paid to the parent, custodian, or guardian of that minor beneficiary. The Petition fails to address whether the trust is to be distributed outright or held in trust for the minors. The Court will require a Guardian Ad Litem be appointed for the minor beneficiaries. The matter is continued to **Monday, July 6, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition to Appoint Successor Trustee. An amended Petition is required to be filed to address the issues raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. A Guardian Ad Litem is required to be appointed for the minor beneficiaries. **No appearance is necessary on today's calendar.**

IN RE: THE YERGENSON FAMILY REVOCABLE TRUST OF 2001, DATED AUGUST 30, 2001

CASE NUMBER: 26PB-0033338

This matter is on calendar for hearing on a Petition for Order Confirming Trust Assets. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition fails to establish that the Trustor intended to hold the subject property in Trust. The basis for the Petition is that, because the Trustor executed a pour-over will, he had a present intent to hold the subject property in the

name of the Trust. A pour-over will indicates an intent that any property not held in Trust at time of death be devised to the Trust after death. A pour-over will does not support a present intent to hold the subject property in the name of the Trust during the decedent's lifetime. No other evidence was provided to show the decedent had a present intent to hold the subject property in Trust while he was living. The Petition is **DENIED** without prejudice. The clerk is instructed to close the file. **No appearance is necessary on today's calendar.**

IN RE: EDWARD H. YOUNG AND JUDY J. YOUNG 2010 FAMILY TRUST
CASE NUMBER: 26PB-0033396

This matter is on calendar for hearing on a Petition for Order Confirming Successor Co-Trustees and Confirming Trust Assets. The matter has not been properly noticed. There is no proof of service for the following beneficiaries of the Trust: Robin Clark, Teron Reynolds, the children of Robin Clark, the children of Teron Reynolds, the children of Damon Young, the children of Trudy Valdez, the children of Tad Young, the children of Kathy Ray, the children of Pearl Hillburn, Phillip Valdez, Brenda Young, and Lance Ray. The matter is continued to **Monday, July 6, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Petition for Order Confirming Successor Co-Trustees and Confirming Trust Assets. Petitioners are required to file and serve a new Notice of Hearing on Petition to Determine Claim to Property, along with a copy of the Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**